

GZ: 2024-0.044.042 dated January 26, 2024 (Case Number: DSB-D165.007)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION STATEMENT

The Data Protection Authority decides on the application submitted by the City of N*** (Applicant) on November 29, 2023, pursuant to Art. 36 GDPR regarding the planned processing of panoramic images of the N*** road network as follows:

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The application for prior consultation under Art. 36 GDPR is rejected.

Legal Bases: Art. 4 No. 1, No. 2 and No. 7, Art. 5 para. 1 lit. c, Art. 35, Art. 36 para. 1, para. 2 and para. 3, Art. 51 para. 1 as well as Art. 57 para. 1 lit. I of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 18 para. 1 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Applicant and Procedural History

1. In a submission dated November 29, 2023, the Applicant consulted the Data Protection Authority in accordance with Art. 36 para. 1 GDPR ("Prior Consultation") and stated that it had conducted a Data Protection Impact Assessment (hereinafter: DPIA) for the processing of panoramic images using the "DataViewing*** technology." According to this assessment, the processing is associated with a high risk for the data subjects.

A copy of the DPIA (or parts thereof) was attached to the submission.

2. By decision dated December 18, 2023, the Data Protection Authority requested the Applicant to supplement the facts, particularly to specify the (planned) implementation date, the data protection responsibility, and the high risk of the processing.

3. In a submission dated December 22, 2023 (received on December 29, 2023), the Applicant stated as follows:

The Applicant (or the responsible municipal department) had conducted a tender for the service "Mobile Mapping of the N*** urban area 2023" on August 22, 2023, as part of a direct award with prior announcement. As a result of the tender, DataViewing*** Deutschland AG (hereinafter: DataViewing***) submitted an offer on September 4, 2023.

submitted. On September 15, 2023, DataViewing*** transmitted to the applicant the draft of a license agreement, which refers to the terms and conditions (AGB) of DataViewing***. Specifically, it is stated as follows: "The licensing terms, the general terms and conditions, and the annex on the protection of personal data according to GDPR of DataViewing*** Deutschland AG apply. For *** Street Pictures, the agreement for the processing of personal data also applies." The license agreement is a draft contract that has not yet been signed by both parties. Therefore, the conclusion of the license agreement has not yet occurred, as there are still points of clarification regarding the terms and conditions between the applicant and DataViewing***. The reason for this is contradictions between the tender and the offer. DataViewing*** has assumed liability in the offer for the "consideration of the relevant requirements of the GDPR." However, one point of clarification is that the offered licensing of processed images does not provide a 100 percent "pixelation rate," but only a 95 percent pixelation. Furthermore, DataViewing*** did not offer "full-body pixelation" for sensitive locations such as entrances to churches, hospitals, women's shelters, or prisons in the offer. In the meantime, on December 11, 2023, DataViewing*** submitted an additional offer at the request of the applicant, which includes full-body pixelation of individuals in sensitive areas. This additional offer is priced at EUR 10,262.50. The response letter also states that the collected data and images would be delivered on a hard drive. This transfer would result in ownership of the hard drive passing to the applicant upon delivery. In contradiction to this, the AGB of DataViewing*** states that the data must be deleted after the end of the contract, and thus the applicant has no right to a free copy of the data and images after

the end of the license agreement. Although no license agreement is in place yet, DataViewing*** conducted a survey of the N***er road network on its own responsibility from October 17 to 28, 2023, to create panoramic images. In the area of responsibility of the applicant, no processing activity has yet occurred concerning the relevant panoramic images. The present application for prior consultation relates exclusively to the planned processing activities by the applicant as the data controller. Based on the offer and accompanying documents, the planned collaboration with DataViewing*** results in the following delineation of responsibility: DataViewing*** bears sole responsibility for the survey, recording, and final [creation] of the panoramic images of the N***er road network. It offers the applicant software as a hosting service ('SaaS'), through which processed (i.e., pixelated) image material is provided to the applicant as the licensee via a web viewer. This is not an exclusive license for the applicant to the processed images, as the image material can also be licensed to third parties. Therefore, DataViewing*** is responsible for the entire processing activity of creating real images, the process of processing preparation, and the provision of processed images to licensees via the web viewer. The applicant is only responsible for the use of processed images through the SaaS solution.

Translation of Legal Document Text:

Thus, there is no conclusion of a data processing agreement between DataViewing*** and the applicant, but rather a licensing agreement is planned. According to the assessment by the applicant, this fact and the resulting data protection legal assessment derive from text passages of the DataViewing*** terms and conditions and accompanying documents. The responsibility of the applicant is thus limited to the processing of processed images and their use via a SaaS software solution. The process of image processing ("blurring process") consists of obscuring ("pixelating") the faces of individuals and vehicle license plates. Nevertheless, the data protection authority was involved in the project as part of a prior consultation because the then data protection commission (hereinafter: DSK) had approved "Google Street View" in 2011 [only] under three conditions, which are not fully met in this case. The licensing agreement between the applicant and DataViewing*** pertains to the entire public N***er road network (1.*** km) with the exception of parking lots on private property, parking garages, areas with high crime rates or sensitive areas (military, red-light districts), private roads, parks, cemeteries, pedestrian zones, economic paths (field paths), and nature reserves. The pixelation of faces and vehicle license plates corresponds to the standard that the DSB deemed permissible for a scientific study on the "analysis of road surfaces and road space" (GZ: DSB-D202.207/0001-DSB/2018). However, the solution offered by DataViewing*** in the licensing agreement and accompanying documents does not exactly meet the conditions approved by the DSK for Google Street View, particularly regarding the degree of pixelation of individuals in especially sensitive locations. Specifically, DataViewing*** does not offer full-body pixelation of individuals at the entrances of churches, places of worship, hospitals, women's shelters, and prisons in its offer dated September 4, 2023, unlike Google Street View. Another difference from Google Street View is that the images licensed by DataViewing*** are not made publicly accessible on the internet. Rather, the processing under the DataViewing*** license occurs through retrieval via the web viewer. Licensees of DataViewing*** (thus also potentially the applicant) are not permitted to publish the image material. The applicant plans to further process the data on a case-by-case basis for official purposes, as outlined in the DSFA. This includes, among other things, the creation of a geodata infrastructure for environmental policy purposes and other political measures or activities that could have direct or indirect impacts on the environment. Furthermore, it is intended for foundational research for local spatial planning and management of traffic areas. As a municipality, the applicant is also subject to the legal reservation of § 1 para. 2 DSG when using it for sovereign administration. In this regard, the stated processing purposes would be based on sufficient legal grounds and would also differ from the primarily Art. 6 para. 1 lit. f GDPR-based application of Google Street View. However, the city surveying office of the applicant also raised the question after submitting the application for prior consultation whether it would be possible to use the image material licensed from DataViewing*** for administrative police purposes. Therefore, in addition to the application, a review is also requested regarding whether such a

Processing Purpose Permissible. In summary, there is no conclusive legal certainty on the part of

the applicant, particularly since the offered data processing encompasses the entire N***er road network, resulting in a very high number of affected individuals. While there is a comprehensive, but not absolute, data processing, pixelation errors can be reported via the viewer and corrected within 14 days. The image in question will be pixelated after the report. The particularly sensitive locations for which DataViewing*** subsequently offers a "full-body pixelation" at an additional cost do not exactly correspond to those of Google Street View. The balancing question arises as to whether a full-body pixelation must necessarily be carried out for these locations, even if the data is only available for administrative purposes. Clarification is requested as to whether the offered image material can also be used for other administrative police purposes. For the reasons stated, there is a "high risk" of processing.

4. In a decision dated January 2, 2024, the Data Protection Authority informed the applicant that a consultation pursuant to Article 36 GDPR was not suitable for addressing any questions regarding the permissibility or legal compliance of processing activities. Furthermore, it stated that the specific processing of personal data or the delineation of responsibility had not been sufficiently explained.

5. In a submission dated January 9, 2024, the applicant stated as follows:

According to the case law of the DSB, the consultation mechanism of Article 36 GDPR serves the purpose of allowing the supervisory authority to perform a consulting function, thereby being able to provide recommendations to mitigate data protection risks (DSB 21.04.2022, GZ: 2022-0.263). This is intended to ensure the consultation of the competent supervisory authorities for high-risk processing, such as the use of new or novel technologies, where the controller has not yet conducted a DPIA (DSB 2.2.2021, GZ: 2021-0.024.862). Sources of risk may include both internal and external as well as potential and actual risks. According to Knyrim, identifying all potential risks requires nothing less than a kind of "survey of the requirements of data protection law." In the present case, a "high risk" is assumed, for example, based on Article 35(2)(c) GDPR ("systematic extensive monitoring of publicly accessible areas") or § 2(2)(3) DSFA-V ("processing operations aimed at the observation, monitoring, or control of affected individuals, particularly through image and associated acoustic data processing") etc. Based on the facts of the DSFA-V, a DPIA has thus been conducted. However, despite the measures taken by the licensor, a high residual risk remains, primarily due to the fact that the processing of DataViewing*** panoramic images documents the entire N***er road network with high-resolution images. The DataViewing*** image database enables a systematic evaluation of the image data and could give affected individuals the impression of systematic monitoring of public space in the N***er road network.

arise (GZ: DSB-D216.309/0007-DSB/2017). This is because practically every street and every property in N*** is visually captured. According to Art. 36 para. 1 GDPR, a consultation is required when the identified residual risks cannot be minimized by measures taken by the controller. As outlined in the application for consultation and the submission of documents, the licensor takes certain measures, particularly the data processing (pixelation) of faces and vehicle license plates in 95 percent of the licensed images, as well as the non-capture of the already mentioned areas (entrances to sensitive locations). The literature states that - considering the possibility of obtaining (factual) legal certainty in advance regarding the conformity of the intended data processing with the GDPR - the consultation mechanism should be extensively utilized. In this regard, the submission of the project appears justified, as this provision, as quoted above, aims to enable the supervisory authority to assume a consulting role for controllers in processing activities with high residual risks.

After the submission of the original application, the project was expanded by the applicant, which is why the follow-up submission dated December 22, 2023, expanded the consultation request concerning the purpose of processing. This is not merely a consideration of use without concrete planning. With this, the applicant intends to modify the consultation request and add the use of the image material for administrative police purposes within the jurisdiction of the applicant as an additional purpose of processing.

The submission included, among other things, symbolic images from the website "DataViewing***.com."

6. In a submission dated January 16, 2024, the applicant presented a "Data Protection Legal Opinion" transmitted to the applicant by DataViewing***.

B. Factual Findings

1. The applicant is an Austrian municipality.

For the purpose of creating a geodata infrastructure as well as for local spatial planning and management of traffic areas, the capture of the entire municipal area of the applicant was announced on August 22, 2023 [date of announcement] in accordance with procurement regulations "using a vehicle-mounted, imaging and LiDAR data capturing Mobile Mapping System with associated data processing (anonymization of persons and vehicle license plates, georeferencing, quality control) and visualization in a web-based Mobile Mapping Viewer" [short designation: "Mobile Mapping Survey of the N*** City Area 2023"].

2. In the context of the announcement from August 22, 2023, it was noted, among other things, as follows [excerpt, as far as relevant to the proceedings]:

"[...] All objects in the visible street space should be captured in three dimensions and visualizable, digitizable, and measurable in a suitable browser-based viewer under the condition of highly accurate georeferencing. The image and laser data should be stored cloud-based on a server secured against unauthorized access within the territory of the European Union.

To ensure data protection regarding the image information, persons and vehicle license plates must be rendered unrecognizable. [...]"

3. On September 4, 2023, DataViewing*** Deutschland AG [hereinafter: DataViewing***] submitted an offer regarding the tender mentioned in point B.2.

DataViewing*** is a company based in Germany [Commercial Register of the District Court P*** No. HRB *4*1], which specializes in capturing 360° panoramic images [so-called "Roundview***s"] of public roads. These are captured using specially equipped vehicles utilizing public geometry and land registry data. There are no video or real-time recordings.

In the process, vehicle license plates and persons (or specifically their faces) that are inevitably captured are processed technically after recording so that they are - as exemplified in the following image - blurred ("pixelated"):

[Note by the editor: The symbolic photo inserted here in the original as a graphic file to demonstrate the pixelation technique has been removed.]

4. DataViewing*** independently determines (possibly with affiliated companies) when ["Survey Calendar"], from which specific areas, and at what granularity recordings will be made, as well as which specific technical means (camera systems, etc.) will be used for this purpose.

The panoramic images ["Roundview***s"] created by DataViewing*** are made available to third parties, public and private institutions ["licensees"] through (license) contract conclusion. No exclusive or separate recordings are made at the request of licensees. However, areas for which there are already interested parties are prioritized for capture.

The images are not publicly accessible, and licensees only receive access to pixelated representations (see point B.3.), which in turn only encompass limited areas of the image database of DataViewing*** for their own purposes. Images that are not or not sufficiently pixelated (e.g., due to algorithm errors) can be reported to DataViewing*** by licensees or affected persons, for example, via the so-called "Web Viewer," which then checks the report and may take measures for pixelation.

All licensees in a specific area also receive the identical image dataset.

5. DataViewing*** submitted a proposal on September 4, 2023, as a result of the tender (see point B.3.), and transmitted the draft of a license agreement to the applicant on September 15, 2023, which is to be valid under the conditions mentioned in point B.4., with reference to the General Terms and Conditions and Privacy Notices of DataViewing***.

The image material of the road network in the municipality of the applicant will be made available to them via retrieval through a "Web Viewer" (software "See*** Street *****"). See*** Street ***** is offered as a web application (SaaS, Software as a Service), which allows access to the panorama images at street level. It also includes a reporting function for subsequent pixelation of images where individuals or vehicle license plates have not been sufficiently anonymized.

Additionally, according to the offer from DataViewing*** dated September 5, 2023, there is the possibility to agree that the collected data and images will be delivered on a hard drive and will transfer ownership to the applicant.

Excluded from the image material made available to the applicant are the following areas according to the draft contract: parking lots on private property, parking garages, areas with high crime rates, and certain sensitive areas (e.g., military installations), private roads, parks, cemeteries, pedestrian zones, economic paths, forest paths/woodland paths, and nature reserves.

Furthermore, the draft contract includes, among other things, the following conditions (excerpted as far as relevant to the proceedings):

“[...] The licensee is not permitted, without prior written consent from DataViewing***:

to publish the image material and/or information in any form (including all conceivable digital or internet applications).

to allow third parties to use the image material and/or information in any other way, regardless of the purpose;

to derive metadata from the image material and the associated documentation, as long as this is not necessary for the intended and agreed use of the image material.

The derivation of data about the recording locations as well as data about natural persons whose data has been anonymized is not permitted in any case; [...]”

6. On December 11, 2023, DataViewing*** presented the applicant with an (additional paid) offer, which included additional data processing, specifically the full-body pixelation of individuals in entry areas of churches, places of worship, hospitals, women's shelters, and prisons.

7. At the time of this application, there was no (license) contract concluded between DataViewing*** and the applicant, but concrete contract negotiations were taking place. Accordingly, there has also been no access by the applicant to the image database so far.

8. In October 2023, DataViewing*** conducted a survey and recording of the road network in the municipality of the applicant (as stated, without a specific order from the applicant).

9. The Data Protection Impact Assessment [hereinafter: DPIA] of the applicant in connection with the planned use of the services offered by DataViewing***, signed on November 28 and 29, 2023, includes, among other things, the following statements along with each specifically mentioned "risk factor" (excerpted as far as relevant to the proceedings, formatting not reproduced 1:1, highlighting of risk factors by the DSB):

“Data Protection Impact Assessment

I. Description of the processing activity:

Panorama images of the N*** road network

Responsible department:

MA **** – City Surveying Office of the City of N***

MA **** – Road Office of the City of N***

II. Description of the processing activity:

1. Basic information

What personal data is being processed? Risk factor: Medium

Panorama images of the N*** road network (1.*** km according to the tender)

Data source: Software as a hosting service ('SaaS') of DataViewing*** Deutschland AG

The City of N*** is provided with the following data as a licensee in the SaaS solution:

(1)

Roundview***s

(Processed

panorama images),

(2)

LiDAR

point cloud

of the

data set

(surface model)

For what purpose is the personal data being processed? Risk factor: Low

(1) Creation of a geodata infrastructure for the purposes of environmental policy and other political measures or activities that may have direct or indirect effects on the environment.

(2) Basic research for local spatial planning as a data basis for the legally prescribed spatial planning instruments.

(3) Management of the Traffic Areas of the Municipality, Road Maintenance

Which categories of affected persons are covered by the processing? Risk factor: Medium

Natural persons who can be identified directly or indirectly through elements visible in the recordings

(Source: GDPR Guidelines of DataViewing***, p. 10)

How many persons are affected by the processing? Risk factor: High

Total population of N*** (as of 01.01.2023: 21*.*** primary residences, 29*.*** primary and secondary residences)

What technology is used to process the data? Are new technologies also utilized? Risk factor: Medium

The data processing is based on the SaaS solution. User access to the data is provided via the See*** Street **** solution. (Point 4 of the Quality Assurance Concept of DataViewing***). In See*** Street ****, DataViewing*** processes all user accesses based on log data and IP addresses (Point 2 of the Data Protection Declaration See*** Street **** by DataViewing***).

The city of N*** is entitled, based on the licensing agreement, to make copies of the provided data material. The data copies are stored locally in the authorized departments of the Magistrate N*** as follows:

There is no local storage of the entire image material from the SaaS application. On a case-by-case basis, images are copied at the caseworker level from the application using individual downloads or screenshots and are further processed locally in file servers or Elak applications.

The data is made available by DataViewing*** for visualization, evaluation, and download purposes in a web-based Mobile Mapping Viewer. The storage of the data takes place on an external cloud-based, GDPR-compliant server located within the European Union. (Page 8 of the response letter from DataViewing*** to the city of N*** regarding compliance with the tender conditions).

Were the affected persons informed about the processing? And if so, what information was provided to them? Risk factor: Low

(1) Information from SRIW Self-Regulation Information Economy e.V.

https://geodatenkodex.de/detail/DataViewing***-deutschland-ag-erstellt-ab-09-oktober-2023-bildmaterial

(2)

Press release in the web article

https://www.n***.gv.at/cms/beitrag/*4*6/0*9*01/Vermessung_der_Stadt_Kamerafahrten_durch_N***.html

Are automated decisions made about the affected person in the processing? Risk factor: Low

No, certainly not by the city of N***.

Are the personal data combined or compared with other datasets? Risk factor: Low

No, certainly not by the city of N***.

How is the data collected? Risk factor: Medium

The city of N*** is not responsible for the collection of image material through camera surveying, but is only a licensee for the delivered and processed panoramic images as well as LIDAR data.

The panoramic images originate from a camera survey of the N*** road network conducted by the company DataViewing*** Technology B.V., U***straat *88/*3, **** O***, Netherlands, or its subsidiary DataViewing*** Deutschland AG, R***platz *53, *0*7* P***. DataViewing*** Technology B.V. and its affiliated companies, such as DataViewing*** Deutschland AG, specialize in providing 360° visualizations of roads as processed panoramic images to licensees. In providing these services, DataViewing*** Technology B.V. and its affiliated companies act as joint controllers within the meaning of Art. 26 GDPR. (Point 1.1 of the Data Viewing*** GDPR Guidelines)

Is it ensured that only data necessary for the specified purpose is collected?

Risk factor: Low

Access to DataViewing*** data via the SaaS solution See*** Street **** is granted with authentication. (Point 2 of the privacy policy See*** Street **** by DataViewing***). The reader role is granted only to authorized persons in the Magistrate N***. Similarly, access to images from the data copy is granted only to authorized persons in the Magistrate N***.

To what extent is the data processed?

Risk factor: High

The license agreement between the City of N*** and DataViewing*** Deutschland AG pertains to the entire public N*** road network (1.*** km) with the following exceptions:

1. Parking lots on private property, parking garages,
2. Areas with high crime rates or sensitive areas (military, red-light districts, etc.),
3. Private roads,
4. Parks,
5. Cemeteries,
6. Pedestrian zones,
7. Economic paths (field paths),
8. Forest paths/woodland paths,
9. Nature reserves

(See Point 2.1.2 of the survey concept of DataViewing***). Contrary to the original survey concept, public parks and pedestrian zones were surveyed because exceptions were granted by the road authority. The exact list of streets covered by the license agreement is derived from the order letter from the City of N***, City Surveying Office dated [Draft of September 15, 2023].

Who is the data controller in the sense of Article 4 (7) GDPR?

Risk factor: High

The Data Viewing*** privacy information states:

“DataViewing*** is classified as an independent controller. DataViewing*** determines, for example, its own processing purposes as well as the technical means by which personal data is processed, including how the recordings are captured using our patented technology and stored on our cloud servers. We also determine from which areas we create recordings and at what granularity, which customers have access to our database, or how long the recordings are retained. We do not create exclusive or separate images at the request of our customers but capture areas on our own initiative, as we aim for complete coverage of the public road space. For efficiency and logistical reasons, we prioritize the capture of areas where we have already acquired at least one customer or prospect and recognize further potential. However, all customers in a specific area access the same dataset and do not use a dataset created specifically for them. Thus, we do not cater to the requirements of a specific customer and retain control over the processed recordings.”

In Point 1.2 of the Annex – Protection of Personal Data, DataViewing*** states:

“This annex applies insofar as DataViewing*** transfers personal data, as described below, to the data recipient, which the data recipient processes as an independent controller. DataViewing*** and the data recipient acknowledge that each processes the personal data they process as independent, autonomous controllers (within the meaning of Art. 4 No. 7 General Data Protection Regulation ("GDPR")); the parties are not joint controllers). Both the data recipient and DataViewing*** act in accordance with the GDPR and...”

allen

weiteren

gesetzlichen

Vorschriften,

Verhaltenskodizes

und

sonstigen

****anwendbaren****

****Datenschutzbestimmungen.****

****Ferner wird im Pkt. 1.2. des DSGVO-Leitfadens von DataViewing*** ausgeführt:****

„Die DSGVO unterscheidet zwischen einem Verantwortlichen und einem Auftragsverarbeiter. Diese Abgrenzung ist wichtig, weil sich die Zuständigkeiten und Pflichten eines Verantwortlichen von denen eines Auftragsverarbeiters unterscheiden. [...] Ausgehend von diesen Begrifflichkeiten ist DataViewing*** als eine Verantwortliche einzustufen. DataViewing*** bestimmt zum Beispiel die technischen Mittel, mit denen die personenbezogenen Daten verarbeitet werden, da die Aufnahmen mit unserer patentierten Technologie erfasst und auf unseren Cloud-Servern gespeichert werden. Wir bestimmen auch, von welchen Gebieten wir in welcher Granularität Aufnahmen erstellen, welche Kunden Zugang zu unserer Datenbank erhalten und wie lange die Aufnahmen aufbewahrt werden. Darüber hinaus erstellen wir keine exklusiven oder gesonderten Aufnahmen im Auftrag unserer Kunden, sondern erfassen Gebiete auf eigene Initiative, da wir eine vollständige Abdeckung des öffentlichen Straßenraums anstreben. Da unsere Daten unterschiedlichen Nutzergruppen aus diversen Branchen zugänglich gemacht werden, achten wir auf einen möglichst generischen Datensatz. Aus Effizienz- und Logistikgründen priorisieren wir je nach Sachlage die Erfassung von Gebieten, in denen wir bereits mindestens einen Kunden bzw. Interessenten gewonnen haben und weiteres Potential erkennen. Alle Kunden in einem bestimmten Gebiet greifen jedoch auf den gleichen Datensatz in unserer Datenbank zu und verwenden keinen eigens für sie erstellten Datensatz. Wir richten uns also nicht nach den Anforderungen eines spezifischen Kunden, behalten die Kontrolle über die verarbeiteten Aufnahmen und entscheiden, welche Kunden Zugang zu den Daten haben. In Ziffer 2 weiter unten wird beschrieben, wie wir unseren DSGVO-Verpflichtungen als Verantwortliche nachkommen. Da Sie als unser Kunde das Bildmaterial für Ihre eigenen geschäftlichen Zwecke nutzen werden, sind auch Sie - wie DataViewing*** - als Verantwortlicher für Ihre eigene Datenverarbeitung einzustufen. Schließlich bestimmen Sie, ob die von Ihnen abgerufenen Aufnahmen für bestimmte Zwecke nützlich oder erforderlich sind, welcher Teil der Aufnahmen für diese Zwecke verwendet wird und welche Nutzer in Ihrer Organisation Zugang zu unserer Datenbank erhalten.“

****Wer hat Zugriff auf die personenbezogenen Daten? Haben Auftrags-nehmer Zugriff auf diese Daten und geben diese wiederum an Subauftragsnehmer weiter? Risikofaktor: Mittel****

(1) Zur Schaffung einer Geodaten-Infrastruktur MA **** Stadtvermessungsamt der Stadt N***

(2) zum Zweck der örtlichen Raumplanung:

MA **** Stadtbaudirektion der Stadt N***

MA **** Stadtplanungsamt der Stadt N***

MA ****/3 Abteilung für **** & Gewässer der Stadt N***

MA ****/7 Abteilung für Verkehrsplanung der Stadt N***

(3) zur Verwaltung der Verkehrsflächen der Gemeinde, Straßenerhaltung an:

MA **** Straßenamt der Stadt N***

Holding N*** Kommunale Dienste GmbH, Spartenbereich Stadtraum

(Im Rahmen des Service-Level-Agreements bzw. Betriebsführungsvertrags zwischen Stadt N*** und Holding N*** zur Straßenerhaltung)

Die See*** Street **** App – Lösung der Firma DataViewing*** AG hingegen wird von der Stadt N*** nicht eingesetzt werden und wurde diesbezüglich auch kein Lizenzvertrag abgeschlossen.

****Werden die Daten an andere Organisationseinheiten weitergegeben (Übermittlung) oder an externe Dritte? Risikofaktor: Niedrig****

Nein. Eine Veröffentlichung der lizenzierten Bilddaten im Internet, oder auch eine Überlassung an Dritte durch die Stadt N***, ist vertraglich nicht gestattet (Pkt. 4 des DSGVO-Leitfadens von DataViewing***).

****Are data also forwarded outside the EU/EEA or do individuals have access to them?****

Risk Factor: Low

No, certainly not by the city of N***.

****Where are the personal data stored?****

Risk Factor: Low

The use of licensed image data by the city of N*** takes place via a web viewer in the application See*** Street **** through the SaaS service. There is no structured local storage of the entire image material from the SaaS application. On a case-by-case basis, images are copied from the application with screenshots at the caseworker level and further processed locally on file servers or ELAK applications.

****How long are the personal data stored?****

Risk Factor: Low

The storage duration is specified in point 3.3 of the GDPR guidelines from DataViewing***, p. 10:

“Storage duration: Indication of how long the recordings are stored by your organization (if you have made copies) or used by you (if you have not made copies, this would correspond to the duration of your license agreement with DataViewing***).”

The processing via the web viewer in the SaaS service occurs for the duration of the license agreement. The city of N*** currently has a license agreement for the SaaS application limited to 24 months from delivery. However, the processed data and images are delivered by DataViewing*** to the city of N*** on a hard drive (Response letter from DataViewing*** to the city of N*** dated September 5, 2023, p. 11).

****2. Legal Assessment****

(a) Threshold Analysis

Preliminary Question: Is the processing listed in the Data Protection Impact Assessment Exceptions Regulation (DSFA-AV, BGBl. II No. 108/2018) or in the Data Protection Impact Assessment Regulation (DSFA-V, BGBl. II No. 278/2018)?

Is a data protection impact assessment required in any case, or can it be omitted?

Yes. Requirement according to § 2 para. 2 no. 3 lit a) and lit c) DSFA-V BGBl II No. 278/2018.

Is there systematic extensive monitoring of publicly accessible areas?

Yes, however, it is not a permanent monitoring but only a snapshot at a specific point in time.

Repeated surveys are possible within a few years.

(b) Legal Risk Assessment

Is the processing carried out for specified, clear, and legitimate purposes?

1) Creation of a geodata infrastructure for the purposes of environmental policy and other political measures or activities that may have direct or indirect impacts on the environment.

Legal Bases:

- Art. 6 para. 1 lit e) GDPR

- § 41 para. 3 Statute of the city of N***

- [...]

(2) Fundamental research for local spatial planning as a data basis for the legally prescribed spatial planning instruments.

Legal Basis:

☐

Art. 6 para. 1 lit. e) GDPR

☐

§ 41 para. 2 no. 11 Statute of the City of N*** "Local Spatial Planning"

☐

[...]

(3) Management of the traffic areas of the municipality, road maintenance

Legal Basis:

☐

Art. 6 para. 1 lit. e) or lit. f) GDPR

☐

§ 41 para. 2 no. 8 Statute of the City of N*** "Management of the Traffic Areas of the Municipality"

☐

[...]

[...]

Are only the data necessary for the specific purpose processed, or are there less intrusive means?

Can anonymous data be used instead of personal data?

☐

Panoramic images are processed for the purposes mentioned above.

☐

The aim of image processing for the public N*** road network is to provide a data basis for object data.

☐

The following measures are taken by the licensor to pseudonymize the image material provided in the SaaS application:

Point 2.2. of the GDPR Guidelines from DataViewing*** states:

“Anonymization:

Since faces and license plates are meaningless for the purpose of processing, we use a software tool that automatically recognizes and anonymizes faces and license plates in the recordings ("Blurring"). This software tool uses an algorithm developed by DataViewing***, which has been "trained" using datasets with panoramic photos from the street space. Our customers only gain access to the street images in our database once the raw data has undergone the blurring process through this software tool. It is important to note that this process of anonymizing faces and license plates is irreversible; even we cannot reverse this in the raw data.”

“Further examples of measures we have taken:

☐

Our recordings are not made publicly accessible (e.g., on the Internet);

☐

Our customers do not have access to all recordings, but only to the relevant geographical areas within the image database for which they have acquired a spatially delimited license;

☐

The database is stored on high-security servers;

☐

We use passwords, identifiers, and other technical security measures to prevent unauthorized access to our database;

☐

Customers only gain access to our database once the raw data has been subjected to the blurring process using the DataViewing*** software tool;

☐

The storage of the raw image material - before the anonymization is executed - occurs in a non-open, proprietary format;

☐

The anonymization takes place within the raw data;

☐

The image material is only accessible to employees and/or third parties whose work and area of activity require access to this data and who have been expressly authorized to do so;

☐

All employees and/or third parties who are authorized to access the image material are properly and fully informed about their obligations regarding the lawful processing of the image material and the data derived from this material;

☐

All granted permissions are timely modified when employees take on other tasks or leave the company;

☐

All granted permissions and any related changes are regularly reviewed; and

☐

In our application See*** Street ****, a "Blurring Button" is available, which allows users of the database DataViewing*** to easily notify if a face or a license plate has not been sufficiently

anonymized. DataViewing*** will then manually anonymize the relevant areas if necessary. In the response letter from DataViewing*** Deutschland AG to the city of N***, page 11, regarding compliance with the tender conditions, it is further stated:

„The pixelation of vehicle license plates and faces is legally required as part of data protection (GDPR). DataViewing*** has developed a partially automated process to comply with data protection requirements. The process consists of several steps:

☐

Recognition

☐

Verification

☐

Pixelation according to the state of the art (automatically or, if necessary, manually: at least 95%)

☐

Reporting errors via the re-pixelation function in the software “See*** Street ****”: Any reports will be processed and corrected within a maximum of 10 working days.“

From the perspective of the city of N***, less intrusive means for the described pixelation process are not feasible, as it is not possible to completely obscure persons and vehicles during the image capture of the N*** road network without making it impossible to achieve the purpose of processing, namely providing a continuous dataset of panoramic images.

Are the data only retained (personally identifiable) as long as absolutely necessary to achieve the purpose?

Since it is image material that is accessible in a processed, largely pixelated format via web view from the licensor DataViewing***, it is not subject to a time limit. The web view exists for the duration of the licensing agreement.

Local storage by the city of N*** as the licensee is contractually possible; however, the entire image material is not processed by the city of N*** as a data copy, but only unstructured images are created and locally stored for the mentioned administrative purposes in case of need.

Do only those persons have access to personal data who actually need it for the purpose?

Yes, this is correct. Only employees from the relevant departments in the magistrate of N*** receive access authorization via the application See*** Street ****.

Was the affected person sufficiently informed?

The information required under Articles 13 and 14 of the GDPR has been published on the website of the city of N*** at www.n***.gv.at/datenschutzinformation under the link Panoramabilder des N***er Straßennetzes.

[...]

3. Technical Risk Assessment

The technical risk for the phase of image capture during the traversal of the N*** city area is solely borne by DataViewing*** AG, as it claims to be the responsible party for data processing from a legal perspective. This technical risk is therefore not to be assessed from the perspective of the city of N***, as the city of N*** is only the licensee for the processed image material.

The technical risk is assessed as low from the perspective of the city of N*** as the licensee for the anonymized personal data because these image data are stored exclusively in excerpts on secure servers in the data centers of the city of N***. Access protection is ensured through an established authorization concept. The transmission over the internet occurs via an encrypted connection.

Additionally, these anonymized image data of the N*** city area are not made available to the general public over the internet.

As a backup, the city of N*** receives a hard drive with all processed data (see response letter from DataViewing*** dated September 5, 2023, page 11). This hard drive must be stored securely.

4. Measures for Risk Mitigation

Identified Risk

Probability

of Risk Occurrence,

Impact and

Consequences for Affected

Persons

Measures for

Risk Mitigation

Residual Risk

Risk that

personal

information may

be misused by

unauthorized

persons,

for example,

if individuals are

recognizable in

processed images.

Medium;

There could be disadvantages for

affected individuals in

daily life

(e.g., indications

of religious affiliation,

illness, social

contacts).

Discrimination of

the affected person in a

particular area of their

life (e.g., at

work by colleagues).

- Contractual exclusion

of recording certain

protected/sensitive

areas

- Irreversible pixelation

of images to

anonymize faces (in particularly

sensitive areas, the

pixelation of the

entire person occurs) and

vehicle license plates

- Function for

re-pixelation is

provided

- Use of the

image material

exclusively by

licensees

- Access to the

image material

exclusively by

authorized and trained

employees (access

and entry restrictions)

Low

- Access to the image material via encrypted internet connection
- Use of the image material exclusively for the defined purposes
- Partial storage of the image material within the secured data centers of the city N***
- Processing of the image material by DataViewing*** AG based on their privacy policy
- Secure storage of the hard drive containing the backup data

Risk that image data may be used for purposes other than the defined ones.

Medium;

In case of misuse of the image data, affected individuals are deprived of their right to access their data at any time.

- Access to the image material exclusively by authorized and trained employees (access and entry restrictions)
 - Internal organizational determination of the purposes for which the image data may be processed (under "Information on processing activities")
- Low

- Assurance of

the rights of the
data subjects
(deletion, correction,
objection, etc.)

Medium;
Use of the
image material for
the prosecution of
criminal offenses under
the StVO => material
damage for affected
individuals
- Internal
organizational
determination of the
purposes for which the
image data
may be processed
Low

5. Implementation

Who is responsible for the implementation of the measures taken?

The departments responsible for the implementation of the measures are the City Surveying Office and the Road Office of the city

N***. For those measures that can only be carried out by DataViewing*** AG, DataViewing*** AG is responsible.

Appropriate data security measures
implemented through the use of suitable
technology (IT security in the data centers of
the city N***, pixelation according to the state of the art,
data access via encrypted internet connection).

Access protection through permissions

Authorization concept for access to the licensed
image material in accordance with the organizational
regulations and structures of the city N***.

Contractual determination of the areas to be accessed
(exclusion of sensitive areas)

Conclusion of the licensing agreement between the city N***
and DataViewing*** AG as of the given date.

Only trained employees have access to the
image material

Employees in the specialized departments are
trained in data protection law.

Use of the image material only for the
defined purposes

Published "Information on
processing activities" on the internet on the homepage
of the city N***.

Assessment of evidence: The findings are based on the submissions of the applicant dated
November 29, 2023, December 22, 2023 (received on December 29, 2023), and January 9, 2024, as
well as the documents submitted in copy in this context. Furthermore,
on an official inquiry of the website of DataViewing*** at www.dataviewing***.com,

last queried by the Data Protection Authority on January 18, 2024.

C. Legally, it follows:

C.1. General and applicable legal provisions

Personal data within the meaning of the GDPR are all information relating to an identified or identifiable natural person (Art. 4 No. 1 GDPR).

According to Recital 26 of the GDPR, all means that are likely to be used, according to common sense, should be considered when assessing identifiability. In particular, objective factors such as the costs of identification and the time required for it.

The image of a person recorded (captured) by a camera falls under the term of personal data, provided it allows for the identification of the affected person (cf. CJEU December 11, 2014, C-212/13, para. 22). Moreover, image processing (via cameras) regularly constitutes

automated processing within the meaning of the GDPR. The legal definition under Art. 4 No. 2 does not require

"minimum processing," such as continuous recording or storage (cf. BVwG decision of September 3, 2019, GZ: W214 2219944-1).

If individuals entering the monitored area can be identified based on their appearance or other specific

characteristics,

this

constitutes

the

processing

of

personal data. The potential risk of misuse of this data increases with the size of the monitored area and the number of individuals frequenting the area (cf.

EDPB Guidelines 3/2019 on the processing of personal data by video devices, para. 7).

However, image data do not per se constitute a special category of personal data (cf. the decision of the DSB of June 7, 2018, GZ: DSB-D202.207/0001-DSB/2018).

The personal reference of vehicle license plates arises from the possibility of providing information as regulated in § 47 para. 2a KFG 1967, which allows for the identification of a registration owner with proportional means (cf. e.g., the decision of the DSB of August 27, 2019, GZ: DSB-D124.104/0005-DSB/2019).

The controller within the meaning of the GDPR is the natural or legal person, authority, institution, or other entity that alone or jointly with others determines the purposes and means of processing personal data (Art. 4 No. 7 GDPR).

The determination and specification of the data protection roles is not only a necessary starting point in the complaint procedure according to Art. 77 para. 1 GDPR, but in any conceivable procedure before the Data Protection Authority for a further substantive examination.

Only in this way can it be assessed who is actually responsible for compliance with the obligations set out in the GDPR (Art. 24 et seq.; in this case: Art. 36 GDPR) or to whom any potential violations and infringements would be attributable.

The role of the controller primarily arises from the fact that a specific entity has actually decided to process personal data for its purposes. The "purpose" describes an expected outcome, while the "means" determine how the expected outcome is to be achieved (cf. Art. 29 Data Protection Working Party Opinion 1/2010 on the terms "controller" and "processor," WP 169).

According to Art. 36 para. 1 GDPR, the controller consults the supervisory authority prior to processing if a data protection impact assessment pursuant to Art. 35 of the same regulation indicates that the processing would result in a high risk, provided that the controller does not take measures to mitigate the risk. If the supervisory authority believes that the planned processing would not be in compliance with this regulation, it submits corresponding written recommendations to the controller and may

exercise its powers as stated in Art. 58 GDPR (para. 2 of the same regulation).

The controller provides the supervisory authority with the information specified in Art. 36 para. 3 lit. a to lit. f GDPR – particularly the data protection impact assessment. Even though this is not unequivocally evident from the German version – unlike other language versions (for example, English uses "shall") – it must be assumed, based on a systematic consideration of the GDPR (regulation of the controller's obligations in Chapter 4) as well as the penalization of a violation (cf. Art. 84 para. 4 lit. a GDPR), that the prior consultation, when the conditions are met, constitutes an obligation of the controller – not merely an option.

Art. 35 para. 1 GDPR, which is abstractly (regulation-systematically) and concretely (temporally) prior to the consultation procedure, stipulates that a data protection impact assessment (DPIA) is required when it can be assumed, based on certain circumstances (nature, scope, purposes), that the data processing is likely to result in a high risk to the rights and freedoms of natural persons.

From Art. 35 para. 1 and para. 3 GDPR, it can also be inferred that the EU legislator assumes a high risk particularly in the case of the use of new technologies and (automated) data processing that involves systematic and comprehensive evaluation of personal aspects of natural persons (including profiling), extensive processing of data as defined in Art. 9 and Art. 10 GDPR, or systematic extensive monitoring of publicly accessible areas.

Recital 75 of the GDPR elaborates on the concept of risk as follows (emphasis by the DSB): "The risks [...] may arise from processing personal data that could lead to physical, material, or immaterial harm, particularly when the processing leads to discrimination, identity theft or fraud, financial loss, reputational damage, loss of confidentiality [...], unauthorized access."

****Revocation of Pseudonymization or Other Significant Economic or Social Disadvantages****

This may occur if the affected individuals are deprived of or hindered in their rights and freedoms concerning the control of their personal data, particularly when personal data revealing racial or ethnic origin, [...], is assessed, especially when aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, location or relocation are analyzed or predicted to create or utilize personal profiles, [...] or when the processing involves a large volume of personal data and a significant number of affected individuals.

****Recital 84 of the GDPR**** states regarding risk assessment (emphasis by the DSB):

"[...] If a data protection impact assessment indicates that processing operations pose a high risk that the controller cannot mitigate through appropriate measures regarding available technology and implementation costs, the supervisory authority should be consulted before processing."

****Recital 94 of the GDPR**** addresses the consultation of the supervisory authority as follows (emphasis by the DSB):

"If a data protection impact assessment indicates that processing would pose a high risk to the rights and freedoms of natural persons in the absence of guarantees, security measures, and mechanisms to mitigate the risk, and the controller believes that the risk cannot be mitigated through reasonable means regarding available technologies and implementation costs, the supervisory authority should be consulted before the processing activities begin. Such a high risk is likely associated with certain types of processing and the scope and frequency of processing, which may also result in harm or impairment of the personal rights and freedoms of natural persons. The supervisory authority should respond to the consultation request within a specified period. However, it may intervene according to its tasks and powers set out in this regulation, even if it has not responded within this period, which includes the authority to prohibit processing operations. As part of this consultation process, the outcome of a data protection impact assessment conducted concerning the processing of personal data may be submitted to the supervisory authority; this particularly applies to the measures planned to mitigate the risk to the rights and freedoms of natural persons."

****As Sources of Risk (in accordance with Art. 36 GDPR)****, according to the case law of the DSB, in addition to purely "technical" risks, all risks of data processing that may have negative impacts on an

affected person are considered. To mitigate the risk, the GDPR exemplarily mentions three different types of remedial measures, namely guarantees, security measures, and procedures that ensure the protection of personal data and demonstrate compliance with the GDPR. Therefore, technical, organizational, and legal (especially contractual) measures that are intended to provide remedy are crucial. In assessing the remaining residual risk, all planned measures to ensure GDPR-compliant processing must be included (cf. the decision of the DSB dated February 2, 2021, GZ: 2021-0.024.862, among others, referring to Trieb in Knyrim, DatKomm Art. 35 GDPR, para. 116).

****C.2. Consultation on the Subject Matter****

****C.2.1. Subject Matter and Preliminary Remarks****

The subject of the present consultation procedure is, according to the applicant's submissions, among other things, the collection or capturing, querying, and (re)use of information in connection with the creation of panoramic images of the N*** road network, whereby natural persons and vehicle registration plates are also captured in this context.

It is initially pointed out that the applicant has failed, despite multiple reminders from the data protection authority – at least within the framework of the submitted copy of the Data Protection Impact Assessment (DPIA) – to make a clear delineation of data protection responsibility concerning the potential risks. This is evident, for example, in that they have assigned the risk factor "High" to the questions of responsibility, the number of affected individuals, and the scope of processing, while largely quoting from the draft license agreement or the terms and conditions of DataViewing*** without further explanation.

In a first step, it was therefore essential for an actual risk assessment to clarify the data protection roles – per processing step.

****C.2.2. Individual Processing Steps and Related Responsibilities****

****Collection and Capturing****

As can be inferred from the factual findings (Points B.3. and B.4.), individuals and vehicle registration plates are first captured in the course of creating panoramic images using vehicles and a special driving calendar. At this time, individuals and registration plates are at least recognizable (identifiable), which means that it concerns the processing of personal data within the meaning of Art. 4 No. 1 and No. 2 GDPR (see comments on image data under Point C.1.).

In this process, large parts of the public road network within the municipality of the applicant are captured. In this context, the applicant can be supported in that such a high scope of processing with potentially many affected individuals (residents according to the DPIA: nearly 300,000 persons) could indeed present a high risk.

In contrast, the applicant overlooks that DataViewing*** independently decides on both "means" (timing, areas, granularity of recordings, technical instruments) and "purposes" (conclusion of economically lucrative licensing agreements in connection with the created panoramic images).

This is evident not least from the DPIA itself as well as from the other submitted documents (draft license agreement, terms and conditions, annex, and guidelines) of DataViewing***.

In a first intermediate step, it can therefore be noted that the circumstances assessed by the applicant in the DPIA as "high-risk" (number of affected individuals, scope of data processing, responsibility) and the associated processing operations cannot be attributed to the applicant as the responsible party within the meaning of Art. 4 No. 7 GDPR.

From this, it is clear that the considerations regarding "Google Street View" cannot be transferred to the present procedure. If at all comparable, this would primarily apply to the processing activity by DataViewing***.

Furthermore, the mentioned driving was already conducted in October (see Point B.8.) and the processing operation would not have been subject to prior consultation solely due to this fact.

****Querying and (Re)Using****

After the respective road network has been captured (independently of the order) and panoramic images ("Roundview***s") have been collected or created, the individual recordings are processed by the...

DataViewing*** examined and further processed and only in processed form passed on to licensees (specifically: to the applicant). As can be inferred from the findings, this processing particularly involves the (technical) alteration of image sharpness, so that faces and vehicle license plates are no longer recognizable to an average viewer ("pixelation"). Although this approach significantly reduces the possibility of identifying natural persons and thus has a data-minimizing effect (cf. Art. 5 para. 1 lit. c GDPR), it appears that the (full) personal reference for the processing purposes of the applicant (creation of a geodata infrastructure and local spatial planning) is not necessary for potential licensees, which may also represent a suitable technical and organizational measure in the sense of Art. 25 and 32 GDPR.

At the same time, however, due to the lack of standard "full-body pixelation" with the inclusion of further characteristics - particularly the local location as well as temporal aspects - the data protection authority believes that the identifiability and consequently the personal reference is not completely eliminated (in the sense of "anonymization" according to Recital 26 GDPR). This must also be viewed against the background that, based on general life experience and according to the applicant's own statements in the context of their submissions and the DPIA (again referring to the terms and conditions of DataViewing***), one can expect insufficient "pixelation" due to technical deficiencies, meaning that personal data is present in these cases as well.

By deciding to query or further use the image material processed by DataViewing*** via the web viewer (means) for the creation of a geodata infrastructure, local spatial planning, etc. (purposes), the applicant establishes an independent responsibility in the sense of Art. 4 No. 7 GDPR.

C.2.3. Risk of data processing by the applicant

The DPIA underlying the findings (Point B.9.) indicates that the applicant has assigned the risk factor "high" exclusively to those data processing operations which - as explained in Point C.2.2. - do not fall under the data protection responsibility of the applicant. This applies both to the (high) number of affected persons and to the scope of data processing.

To what extent the question of who is responsible for data processing in the sense of Article 4 No. 7 GDPR is supposed to represent a high risk is neither evident from the reasoning in the context of the DPIA - which is essentially limited to the mere reproduction of the data protection information (including annex) of DataViewing*** - nor has this been further specified in the context of the present procedure.

As explained in Point C.1., (risk) remedial measures - of a technical, organizational, and legal nature - must also be included in the assessment of the remaining residual risk. Point 4 of the DPIA ("Measures for risk limitation") indicates that this has been classified as "low" by the applicant in all respects.

A review beyond the risk determined by the applicant in the context of the DPIA is, however, in no way the task of the data protection authority in the context of a consultation procedure and must be firmly opposed by the applicant based on the cited case law and literature, insofar as it suggests an "excessive use" of the consultation mechanism for the purpose of "practical legal certainty."

Furthermore, the consultation procedure is not suitable for answering general questions regarding the permissibility of processing activities and even less for assessing the appropriateness of any additional offers (or the associated costs). Moreover, no "final legal certainty" can be granted by the data protection authority through a (permissible) consultation procedure in any case.

Overall, the data protection authority therefore concludes that the conditions for prior consultation according to Art. 36 GDPR are not met due to the lack of (demonstrated) high risk.

It was therefore decided accordingly.